

**United States Department of Agriculture
Justification to Restrict Competition
Identification Number: 1202SC26Q2701**

In accordance with the Revolutionary Federal Acquisition Regulation (FAR) 12.102 (b), the following justification documents the decision to restrict competition for this acquisition.

(1) Mission Area and Contracting Activity.

The United States Department of Agriculture (USDA), Forest Service, Incident Procurement Operations, proposes to enter into a contract on a basis of “other than full and open” competition.

(2) Nature and/or description of the action being approved.

This J&A authorizes and approves the award of a sole-source, firm fixed-price, indefinite-delivery, indefinite quantity (IDIQ) as a follow-on to 127EAU24P0079 for the procurement of supply for Original Equipment Manufacturer (OEM), SEI Industries LLC., “Dragon Eggs” Aerial Ignition Spheres, NFES #3412 from the sole authorized SEI Industries LLC. distributor, HELIFIRE, LLC. for the National Incident Support Caches (NISC) program. The NISC is the backbone logistics network for the USDA/Forest Service and partner agencies as the nationwide logistics and supply system for wildland fire and all-hazard incidents. The NISC is essential for providing critical needs and Dragon Eggs are essential for field units in fire suppression activities, offering compatibility with existing systems and training while adhering to the strict equipment parameters the USDA/Forest Service operates under. The new contract will continue to provide the critical resources and expertise needed to maintain and enhance the performance of required systems.

This supply is commercial in nature and will be procured utilizing the procedures listed in FAR Part 12 and FAR Part 15.

The suggested contractor is:
HELIFIRE, LLC (a self-certified Small Disadvantaged Business)
3039 Amweiler Rd Ste 128
Atlanta, Georgia 30360-2824
UEI: C1DHT6MP18K6

(3) A description of the supplies or services required to meet the agency’s needs (including the estimated value).

This contract will provide an estimated 4,000 cases of Dragon Eggs per year to be used in existing SEI Industries LLC. Red Dragon Aerial Ignition Devices (referred to as Red Dragon dispenser herein) currently in USDA/Forest Service inventory during prescribed burning and wildfire incidents. The objective of the contract is to ensure the provision of essential supplies and secure the future acquisition of Dragon Eggs, to ensure uninterrupted supply of this critical component of the USDA/Forest Service wildland firefighting infrastructure.

The Red Dragon dispenser is the only aerial ignition device mounted on Unmanned Aerial Systems (UAS) drone and rotary-wing aircraft in USDA/Forest Service inventory and the only aerial ignition

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device authorized for use by the Wildland Fire Aerial Ignition Operations as directed by the National Wildfire Coordinating Group (NWCG) PMS 501, Chapter 3.

Dragon Eggs are the only fire incendiary component or “ammunition” authorized for use in the SEI Industries LLC. (OEM), Dragon series dispensers. Dragon Eggs use a chemical reaction that releases heat energy and delivers burn time sufficient to light difficult fuel sources in variable moisture conditions. Dragon Eggs are engineered to ensure that ignition chemicals are combined optimally to guarantee ignition consistency. HELIFIRE, LLC. is the only authorized distributor of SEI Industries LLC. for Dragon Eggs and to attempt to use any other incendiary component would void any existing warranties, could lead to catastrophic failure of the equipment and safety of the operators in the field, and jeopardizing mission readiness during critical mission needs.

By securing an IDIQ contract vehicle for the supply of SEI Industries LLC. Dragon Eggs through HELIFIRE, LLC., the USDA/Forest Service ensures equipment performance, OEM equipment support, operational reliability, system continuity, and operator and equipment safety while ensuring maximum mission readiness, meeting the strategic objectives of the Wildland Fire Aerial Ignition Operations of our organization.

It is anticipated that one (1) IDIQ contract consisting of one (1) one-year base period and two (2) one-year option periods will be awarded. The estimated total for the base year plus all options is (REDACTED) as shown below:

Period	Fiscal Year	Total
BASE	FY26	(REDACTED)
Option 1	FY27	(REDACTED)
Option 2	FY28	(REDACTED)
Subtotal		(REDACTED)
Evaluation of FAR 52.217-8		(REDACTED)
Grand Total		(REDACTED)

(4) Identify the statutory authority permitting other than full and open competition.

The statutory authority permitting other than full and open competition is 41 U.S.C. 1901 - FAR 12.201-1, Simplified Procedures.

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(5) Demonstrate that the proposed contractor's unique qualifications or the nature of the acquisition requires using the authority cited.

The statutory authority permitting “other than full and open” competition for this procurement applies due to the unique qualifications of the proposed vendor and the nature of the acquisition. The vendor, HELIFIRE, LLC. possesses SEI Industries LLC. proprietary technologies, specialized expertise, and an in-depth understanding of the NWCG Standards for Aerial Ignition. These unique factors are critical to ensuring the continuity and integrity of the program. Furthermore, HELIFIRE, LLC. is the only authorized distributor by SEI Industries LLC. to provide Dragon Eggs.

Previous Purchase Order 127EAU24P0079 of Dragon Eggs was awarded through an “other than full and open” competition process for similar reasoning stated herein, demonstrating the previous vendor as the sole source of providing the only incendiary device compatible with existing aerial ignition devices in USDA/Forest Service inventory available and reflecting the efficiency required in meeting the stringent mission requirements, at time of acquisition. The previous vendor, Type One Incident Support, Inc., is neither a registered small business nor currently an authorized vendor of Dragon Eggs.

If another aerial ignition device were available, transitioning to a new vendor would incur significant duplication of costs (both for new aerial ignition systems and incendiary balls), involving initial setup, system integration, and training expenditures. These costs are derived from past actuals related to program initiation and are deemed non-recoupable through competition. Moreover, the delay in transitioning to another vendor is estimated at 12+ months, derived from historical data on onboarding and system familiarization periods. Such a delay is unacceptable as it would critically hamper the wildfire preparation and response effectiveness, risking equipment failures, safety to personnel, and increased operational costs. This procurement will ensure that the government avoids unnecessary expenses, delays, and maintains mission readiness.

The NWCG provides national leadership to enable interoperable wildland fire operations among federal, state, tribal, territorial, and local partners. The NWCG Standards for Aerial Ignition (NSAI), PMS 501 defines procedures and equipment to ensure that all aerial ignition operations are performed in a safe and efficient manner. NSAI PMS 501 Chapter 3 - Approved Aerial Ignition Devices, lists the only aerial ignition devices currently approved for aerial ignition operations for use by all cooperating natural resource agencies.

Wildland Fire Aerial Ignition Operations utilizes Aerial Ignition Devices as directed by (NWCG) PMS 501, Chapter 3. The manufacturer of the Red Dragon dispenser, SEI Industries LLC., directs the utilization of Dragon Eggs in the Red Dragon to ensure safest operation of the ignition device. Since this requirement is incendiary, safety is of the utmost importance.

Maintaining a supply of Dragon Eggs for use in accordance with OEM, NSAI, and NWCG Aerial Ignition Device standards is critical to the safety of USDA/Forest Service personnel and others who use these devices. Dragon Eggs are the only compatible incendiary ball with existing aerial ignition devices in USDA/Forest Service Inventory and recognized as the national and interagency standard for use in authorized aerial ignition devices. Switching to an alternative incendiary device would

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necessitate the use of other aerial ignition devices, resulting in costly retrofit and integration challenges required to meet NSAI and NWCG standards.

Failure to acquire Dragon Eggs in a timely manner would severely limit operational readiness for upcoming fire seasons, jeopardizing the USDA/Forest Services fire protection responsibilities and wildland firefighting response. Moreover, any reduction in nationwide fire suppression capabilities would pose additional risks to property, USDA/Forest Service personnel, and civilian safety.

HELIFIRE, LLC. is the only authorized distributor of this product in the United States. No other vendor is authorized by the manufacturer to provide the product. Currently, only HELIFIRE, LLC. can ensure continuity of service and mission readiness during fire season while keeping warranty, training, equipment compatibility, and other support options open for existing aerial ignition systems in USDA/Forest Service inventory.

Using “other than full and open” competition under these circumstances is necessitated due to the proprietary nature and specialized capabilities required, which is solely possessed by the vendor via authorization by the OEM. This mitigates the risks of operational disruptions and ensures the continued success and efficiency of the USDA/Forest Service’s wildfire preparation and response and fulfills our organizational objectives without compromise.

(6) Provide a description of efforts made to ensure that offers are solicited from as many potential sources as possible, including whether a notice was or will be publicized as required by Part 5 and, if not, which exception under Part 5 applies.

A sources sought notice for this procurement was posted on March 19, 2026. In addition to HELIFIRE, LLC., two (2) additional responses were received from (REDACTED), and (REDACTED), respectively. However, after a thorough review of their submissions, it was determined that HELIFIRE, LLC. was the only respondent technically capable of meeting all the critical aspects of the contract requirements. Specifically, HELIFIRE, LLC. was the only respondent capable of providing proof of their status as an authorized OEM distributor of SEI Industries LLC. Dragon Eggs.

The proposed contract action was not synopsisized on the SAM website. A Notice of Intent to Sole Source will be published on the Government Point of Entry on Contract Opportunities at www.sam.gov.

Given that the only other sources expressing initial interest were deemed technically incapable, proceeding with HELIFIRE, LLC. under the authority listed in section 4 is justified. This approach ensures the provision of Dragon Eggs, essential to USDA/Forest Service’s wildfire preparation and response without compromising performance or incurring unnecessary delays and costs.

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(7) A determination by the Contracting Officer that the anticipated cost to the Government will be fair and reasonable.

The Contracting Officer has determined the anticipated cost to the Government of the supplies covered by this J&A will be fair and reasonable based on a thorough comparison of historical pricing data from the prior contract and the development of an Independent Government Cost Estimate (IGCE) using current market rates.

(8) A description of the market research conducted, and the results or a statement of the reason Market Research was not conducted.

Due to the proprietary nature of the supplies related to existing SEI Industries LLC. aerial ignition devices in the USDA/Forest Service inventory and authorized equipment directives, limited market research was conducted using GSA Advantage, the SBA database, and internet searches. A “Sources Sought Notice” (1202SC26SS0002) was also posted on SAM.gov for seventeen (17) calendar days, with three (3) responses from interested vendors, however HELIFIRE, LLC. was the only interested party that could provide proof of their status as an authorized distributor and servicer of SEI Industries LLC. equipment.

Although market research identified more than three vendors under the appropriate NAICS code, it has been determined that awarding a firm-fixed-price IDIQ contract as a sole source to HELIFIRE, LLC. is in the best interest of the Government. This approach ensures compatibility, personnel and equipment safety, and uninterrupted operations and mission readiness during the volatile and emergent conditions of wildland firefighting operations. The results of this market research provides a high level of confidence that no other qualified sources exist that can fulfill the government's requirements.

(9) Any other facts supporting use of other than full and open competition, such as:

Several additional factors support the use of this justification for a sole-source contract with HELIFIRE, LLC. The highly specialized nature of the SEI Industries LLC. aerial ignition systems relies on proprietary technologies, methodologies, and incendiary devices (Dragon Eggs) that have been uniquely developed and refined by SEI Industries LLC. since the previous Purchase Order.

Moreover, HELIFIRE, LLC. is the only authorized 3rd party distributor for the proprietary components and technical processes integral to the program’s success. Transitioning to an alternate source would require substantial engineering efforts, significant time, and financial investments to replicate and validate these proprietary technologies, leading to unacceptable delays and operational risks.

The SEI Industries LLC. OEM Dragon Eggs are being procured to replenish NISC inventories for the current and future wildland fire fighting operations and expand mission capacity for existing systems. The Dragon Eggs are essential for pre-wildfire season prescribed burning and wildfire emergency response, supporting public health and safety by providing counter wildfire capabilities.

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Currently, the only aerial ignition systems and corresponding incendiary devices approved by and in the NISC inventory are SEI Industries LLC. OEM equipment and supplies. Introducing a different system would result in non-standardized units requiring separate training, maintenance, and parts; resources the NISC does not have.

HELIFIRE, LLC. has a proven history of reliability, technical support, and collaboration with the USDA/Forest Service to improve performance, reduce field issues, and extend service life. Market research confirmed that no other vendor offers equipment tested, approved, and supported for USDA/Forest Service wildfire operations in this capacity. Given the proprietary nature of SEI Industries LLC. systems and the critical need for reliable, standardized equipment, SEI Industries LLC. sole authorized distributor, HELIFIRE, LLC. is the sole source capable of meeting USDA/Forest Service operational and safety requirements.

(10) A listing of the sources, if any, that expressed an interest in the acquisition in writing.

In response to the sources sought notice posted on March 19, two (2) additional companies expressed interest: (REDACTED) and (REDACTED). Despite their initial interest and submission, a thorough evaluation revealed that they were not technically capable of performing the scope of the contract requirements for the following reason:

Neither vendor is an SEI Industries LLC. authorized distributor of Dragon Eggs; using incendiary devices from this company will void existing SEI Industries LLC. warranties and could lead to damage to equipment, reliability issues, and safety risks to property and personnel.

Given the proprietary nature of SEI Industries LLC. systems and the critical need for reliable, standardized equipment, and maintaining OEM warranties, HELIFIRE, LLC., is the sole source capable of meeting USDA/Forest Service and NWCG standards for operational and safety requirements.

(11) A statement of the actions, if any, the agency may take to remove or overcome any barriers to competition before any subsequent acquisition of the supplies or services required.

The USDA/Forest Service's National Technology & Development Program is actively engaged in enhancing the effectiveness of wildfire operations to include working with industry partners to update technical specifications and testing new equipment and technologies with an emphasis on those that are not reliant on proprietary data, which is challenging to replicate by other vendors. Although we will conduct regular market research and engage with industry to identify new sources and emerging technologies, it is unlikely that these efforts alone will overcome the significant barriers posed by the specialized nature and proprietary technologies of the current program and NWCG standards.

Attempts will be made to promote vendor capability development through pre-solicitation briefs and technical workshops, offering performance standards early in the acquisition process. Despite these efforts, creating a genuinely competitive environment may be difficult. The agency will

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explore incremental acquisition strategies and encourage partnerships and subcontracting to broaden the contractor base. While committed to a continuous review for improvement, the proprietary elements and unique requirements of the program suggest that significant barriers to competition will likely remain.

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(12) Certifications & Approvals

Technical / Requirements Personnel Certification

I certify this requirement meets the Government's minimum need and that the supporting data, which forms a basis for this justification, is complete and accurate.

Travis Nemeth
Assistant Cache Manager,
Southwest Area Prescott Incident Support Cache (PFK)

Date

Contracting Officer's Certification

I certify that the data supporting the recommended use of other than full and open competition accurate and complete to the best of my knowledge and belief.

Matthew Cox
Contracting Officer

Date

Additional Reviews & Approvals

Competition Advocate (greater than \$900,000 but not exceeding \$20M).

I have reviewed this justification and find it to be accurate and complete to the best of my knowledge and belief. Therefore, unless additional approvals are required as prescribed below, as advocate for competition for the procuring activity, I hereby approve this justification. If required, my approval constitutes clearance for submission to the Head of the Contracting Activity (HCA).

Ben McGrane
Chief of the Contracting Office (COCO)
Competition Advocate

Date